

TENTATIVE RULINGS FOR DEPT. S36 [DATE]
BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#)

You may appear by remote appearance at the hearing. (<https://www.zoomgov.com/my/dept.s36>)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULIN

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

ELIZABETH RODRIGUEZ,

Plaintiff,

v.

RONALD ABARO DDS, INC. dba CHINO
FAMILY DENTAL, et al.,

Defendants.

Case No.: CIVSB2226979

**[TENTATIVE] ORDER
GRANTING MOTION FOR
SUMMARY ADJUDICATION
FILED BY DEFENDANT
TIMOTHY VANDECAR**

I. INTRODUCTION

This is a wage and hour and employment litigation. On November 28, 2022, Plaintiff Elizabeth Rodriguez filed her Complaint against Defendants Ronald Abaro DDS, Inc. dba Chino Family Dental (CFD), Ronald Abaro, Marina Hurn, Timothy Vandecar, Carlos Bermudez, and Ianina Cheung. The operative First Amended Complaint pleads 22 causes of action:

- (1) Denied rest breaks against CFD, Abaro, Hurn, and Vandecar;
- (2) Denied meals against CFD, Abaro, Hurn, and Vandecar;
- (3) Waiting time penalties against CFD, Abaro, Hurn, and Vandecar;

- (4) Failure to reimburse against CFD, Abaro, Hurn, and Vandecar;
- (5) Inaccurate wage statements against CFD, Abaro, Hurn, and Vandecar;
- (6) Sex/gender discrimination against CFD;
- (7) Disability discrimination against CFD;
- (8) Perceived disability discrimination against CFD;
- (9) Disability-based associational discrimination against CFD;
- (10) Sexual harassment against CFD and Cheung;
- (11) Harassment against CFD, Bermudez, and Cheung;
- (12) Retaliation against CFD;
- (13) Failure to prevent against CFD;
- (14) Failure to accommodate against CFD;
- (15) Failure to interact against CFD;
- (16) Retaliation (Lab. Code, §§ 98.6, 246.5, & 1102.5) against CFD;
- (17) Negligent hiring, retention, and supervision against CFD;
- (18) Battery against Cheung;
- (19) Sexual battery against Cheung;
- (20) Assault against Cheung;
- (21) Violation of the Unfair Competition Law (UCL) against CFD; and
- (22) Wrongful/constructive termination against CFD.

Defendants answered.

A. FAC's Allegations

The FAC alleges Rodriguez was employed by CFD as a registered dental assistant (¶ 27). She suffers from depression and anxiety (¶ 28). In the course of her employment, supervisor Bermudez would stand over and stare at her, talk down and overexplain things to her, and

address her unprofessionally before patients. Bermudez, a married man, and coworker Cheung would kiss and engage in over-friendly manner with each other that made Plaintiff uncomfortable. Additionally, Cheung started inappropriately touching Rodriguez, and on one occasion, it so upset her that she had a panic attack and had to leave work early and be put off work for a few days off. Also, manager Erika Laza called Rodriguez hard-headed in front of patients (§§ 29-33, 36, 42). On one occasion, Rodriguez was assigned to work with a dentist who may have had Covid with no requirement that he be off-work or take a test before returning to work. Yet, when Rodriguez took off sick unrelated to any Covid symptoms, she was required to obtain a negative Covid test before returning (§§ 34-35, 39). Further, Rodriguez requested a day off on two different occasions to assist family and was denied those time off requests (§§ 38, 40). Plaintiff was also subjected to false and improper write ups and warnings. Finally, due to the stress at work, she quit on May 23, 2021 (§§ 41, 43, 45).

The FAC also alleges that Rodriguez was not provided uninterrupted meals and rest breaks, which resulted in the premium wage not being paid or recorded in her wage statements. She was not reimbursed for the Covid test she was required to take, and for vehicle expense when she traveled to different locations (§§ 39, 46-49, 62, 68, 81-82, 90). When she was constructively terminated, Rodriguez did not receive her final paycheck in a timely manner (§ 75).

Finally, the FAC alleges Defendants Abaro, Hurn, and Vandecar were owners, directors, officers, or managing agents of CFD and personally involved in the wage matters. Alternatively, they were the alter egos of CFD (§§ 13-14, 17, 20, 23).

B. Pending Motion

Defendant Vandecar moves for summary adjudication of the 1st-5th causes of action. Plaintiff Rodriguez opposes.¹ Defendant Vandecar replies. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.²

II. JUDICIAL NOTICE

With her Opposition, Plaintiff Rodriguez requests judicial notice of CPD's corporate filings, *i.e.*, its Articles of Incorporation and Statement of Information (10/6/25 and 2/23/26) (Exhs. 1-3). The Court GRANTS judicial notice of the Statement of Information (Exhs. 2-3) per Evidence Code section 452, subdivision (c), but DENIES as irrelevant judicial notice of the Articles of Incorporation (Exh. 1).

III. EVIDENTIARY OBJECTIONS

With her Opposition, Plaintiff Rodriguez filed 22 evidentiary objections to Vandecar's Declaration at various portions within ¶¶ 1-3 & 5-6 (#1-10), and Andrade's Declaration at various portions within ¶¶ 1-7, 9-10 (#11-22) based upon various grounds, including legal conclusion, contradictory, speculation, lacks foundation, irrelevant, hearsay, lacks personal knowledge, and/or improper lay opinion. The Court SUSTAINS objections #9 (Vandecar's Decl. at ¶ 5 at p. 2:6-8), 13 (Andrade Decl. at ¶ 9 at pp. 3:27-4:1), 15 (Andrade Decl. at ¶ 5 at p. 2:19-20), 16 (Andrade Decl. at ¶ 9 at p. 4:10-12), and 17 (Andrade Decl. at ¶ 9 at p. 4:12-16), but OVERRULES objections 1-8, 10-12, 14, and 18-22.

¹ The Court admonishes Plaintiff's Counsel for submitting the entirety of the deposition exhibits and failing to highlight the cited/relevant portions. Rules of Court, rule 3.1116(b)-(c) provides that deposition exhibits shall include only the title page and relevant pages, and the portion of any testimony at issue "must be marked in a manner that calls attention to the testimony." Plaintiff failed to comply with this rule, thereby making it difficult to determine the relevant information that it was seeking to be acquired from the depositions.

² The Court finds that the moving party has complied with its meet-and-confer obligation.

With his Reply, Defendant Vandecar filed 5 evidentiary objections: (1) Rodriguez's entire declaration (untimely), (2)-(4) Rodriguez's Declaration at ¶¶ 11-13 (conclusory, vague, lacks foundation, calls for speculation, and contradictory), and (5) Additional Fact #14 (conclusory, vague, lacks foundation, calls for speculation, and contradictory). The Court OVERRULES these objections.

IV. EXPLANATION OF THE COURT'S RULING

Under the FAC, Vandecar's liability rests on two theories: alter ego of CFD or personally under mandates of Labor Code section 558.1.

To establish an alter ego theory, the plaintiff must establish a unity of interest and resultant injustice. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 415.) Before a corporate veil may be pierced (i) there must appear a unity in interest and ownership that the individuality of the corporation and owner(s) do not exist, and (ii) that allowing the corporate veil to stand would result in inequitable results. (*Sonora Diamond Corp. v. Superior Court (Sonora Union High School District)* (2000) 83 Cal.App.4th 523, 538.) Factors to consider in whether a unity exists include the commingling of funds and assets, failing to issue stock, failing to maintain minutes or adequate corporate records, having identical equitable ownership, failing to adequately capitalize, and disregarding corporate formalities. (*Zoran Corp. v. Chen* (2010) 185 Cal.App.4th 799, 811-12.)

Labor Code section 558.1, subdivisions (a)-(b), provide that a natural person who is an owner, director, officer, or managing agent of the employer who violates, or causes to be violated, "Sections 203, 226, 226.7, 1193.6, 1194, or 2802, may be held liable as the employer for such violations." Plaintiff's 1st through 5th causes of action are founded under Labor Code sections 203 (3rd), 226 (5th), 226.7 (1st-2nd), and 2802 (4th).

One cannot be liable merely because of status as owner, officer, director, or managing agent. (*Espinoza v. Hepta Run, Inc.* (2022) 74 Cal.App.5th 44, 59 [*Espinoza*].) “However, that does not necessarily mean the individual must have had involvement in the day-to-day operations of the company, nor is it required the individual authored the challenged employment policies or specifically approved their implementation. But to be held personally liable he or she must have had some oversight of the company’s operations or some influence on corporate policy that resulted in Labor Code violations.” (*Ibid.*) An owner, officer, director, or managing agent will be liable for wage-and-hour violations if either (i) he was personally involved in the violation or (ii) he sufficiently participated in the activities of the employer so that he may be deemed to have contributed to, and caused the violation. (*Usher v. White* (2021) 64 Cal.App.5th 883, 896-97 [*Usher*].)

In determining if an owner, officer, director, or managing agent violated or caused to be violated a specified Labor Code provision, the court will need to examine the particular facts in light of the conduct, or lack of conduct, attributed to the owner, director, officer, or managing agent, but if there is no dispute on the material facts, then the issue may be resolved as a matter of law. (*Usher, supra*, 64 Cal.App.5th at p. 897.)

A. Relevant Facts

Here, the relevant facts are that Rodriguez worked for CFD between July 8, 2020, and March 23, 2021. Defendant’s Separate Statement of Undisputed Facts (UF) #15-16 (undisputed).

Vandecar is employed by Our Best Life Management LLC (OBLM). UF #1 (undisputed). He was hired by OBLM on December 8, 2020. UF #2 (undisputed). OBLM is management company that oversees CFD. Plaintiff’s Additional Facts (AF) #9-10.

Vandecar is not an owner, director, officer, managing agent, or employee of CFD in 2020 or 2021. UF #3 & 8. Plaintiff disputes because Vandecar in CFD’s corporate filings is listed as

the Chief Financial Officer (CFO). Although this is true, the Statement of Information for CFD identifies Vandecar as CFO as of October 6, 2025. (Pl's RJN, Exh. 2; Exh. E to Gabriel's Decl.) This does not demonstrate Vandecar was an officer of CFD in 2020 or 2021. Rather, he attests that he became the CFO for OBLM in the summer of 2022, and "[i]n later years ... designated as CFO of CFD...." (Vandecar Decl. at ¶ 6.)

Starting in December 2020, and in 2021, Vandecar's position with OBLM did not involve setting policies, procedures, or directives about employment issues with CFD. He had no control, dominion, or involvement over any employment policies, procedures, or other protocols that applied to the employment at CFD in 2020 or 2021. UF #6 & 9. Plaintiff disputes because Vandecar attests that when he was designated CFD's CFO, he was responsible for compiling financial statements of CFD on an annual basis and to interact with outside professionals. Additionally, in that position, operational matters (*e.g.*, property issues) with CFD would be directed to him. Again, however, this relates to Vandecar's role commencing the summer of 2022, and not his role during the relevant period.

Vandecar was not involved in the hiring or firing decisions at CFD, and had no specific involvement with the employment of Rodriguez. UF #10 (undisputed). He had no personal interactions with Rodriguez in 2020-21. UF #4, 11, & 14 (undisputed).

All shares of CFD are owned by Dr. Ronald Abaro. UF #7 (undisputed).

B. Alter Ego Liability

No alter ego liability can exist against Vandecar if he holds no ownership interest in CFD. It is undisputed that Defendant Abaro is the sole shareholder of CFD [UF #7]. Even if Vandecar at some point was designated an officer of CFD, *i.e.*, its CFO, it does not establish a unity of interest and ownership purposes with CFD to support alter ego.

C. Timing of Vandecar's Role

Although Vandecar became an officer with CFD, the evidence establishes it was *after* Rodriguez's employment with CFD ended. Although Vandecar fails to attest to the date he was appointed an officer within CFD, the evidence establishes it was sometime *after* he was made the CFO of OBLM in the summer of 2022, and before the filing of the Statement of Information on October 6, 2025. Before becoming the CFO, Vandecar was an employee of OBLM, the management company of CFD.

An employee cannot be liable under Labor Code section 558.1. The facts and evidence do not support holding Vandecar held an officer position with CFD in 2020 and 2021 to then be potentially subject to liability under Labor Code section 558.1.

D. Vandecar's Duties

Furthermore, Vandecar's known duties related to financial matters, but it is not clear under the evidence whether those duties existed in 2020 and 2021, or arose after he became the CFO of OBLM in the summer of 2022, and sometime later for CFD. However, even if the Court accepts that Vandecar engaged in handling financial matters after starting his employment with OBLM in December 2020, and that related to CFD, the facts and evidence do not establish a triable issue of him being involved in setting policies, procedures, or protocols associated with the Labor laws at issue herein or having any oversight or influence on CFD's operations [UF #6 & 9].

In *Usher*, the Court of Appeal found no section 558.1 liability of the owner when she did not participate in the day-to-day operations, made no operational, managerial, or policy determinations, and was not involved in the contractor agreements, but she merely signed loan documents, provided funds, and electronically signed paychecks. (*Usher, supra*, 64 Cal.App.5th at pp. 897-98, 899.) In contrast, in *Espinoza*, the individual was the owner who approved the

policy for paying the employee truck drivers that violated various Labor Code provisions.
(*Espinoza, supra*, 74 Cal.App.5th at pp. 58, 60.)

The facts and evidence are akin to *Usher* as opposed to *Espinoza*. That is, Vandecar had no direct involvement with paying CFD employees, granting or denying meals and rest breaks, or granting or denying requests for reimbursement. There are no facts indicating that (i) he set policies for paying CFD employees, providing meals and rest breaks, or reimbursement, nor that (ii) he had any operational control or influence.

V. CONCLUSION

Defendant Vandecar's Motion for Summary Adjudication of the 1st-5th causes of action is GRANTED. (a) No alter ego liability may exist when Defendant Vandecar has no ownership interest in CFD, (b) Defendant Vandecar was not an owner, officer, director, or managing agent for CFD during Plaintiff's employment, as the facts and evidence of his officer status arose after her employment, and (c) Defendant Vandecar did not participate in the day-to-day operations, make any operational, managerial, or policy determinations, and engage in oversight of Plaintiff's employment [UF #1-4, 6-11, & 14-16, and responses thereto; AF #9-10; and cited evidence: Andrade & Vandecar's Declarations; Rodriguez & Andrade's Depositions; and Statement of Information dated October 6, 2025 (RJN, Exh. 2; Exh. E to Gabriel's Decl.)]; IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court